

**BEFORE THE
FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES**

CE GLOBAL NETWORK LLP,

DOCKET NO. 2062(F)

Complainant,

v.

OCEAN LINE LOGISTICS, INC.,

Respondent.

**RESPONDENT OCEAN LINE LOGISTICS INC LIMITED OPPOSITION AND CONDITIONAL
RESPONSE TO REQUEST FOR LEAVE TO ADD ALTERNATIVE LEGAL BASIS**

Respondent Ocean Line Logistics, Inc. ("Ocean Line") opposes Complainant CE Global Network LLP's September 17, 2026 Request for Leave because the proposed amendment is not merely a different citation applied to settled facts. It introduces a distinct statutory claim requiring proof of Ocean Line's transactional capacity, the governing rate arrangement, the character of each invoice component, and whether any particular component was an unstated pass-through charge. CE possessed the invoice and tariff materials when it filed its verified claim but waited until after Ocean Line answered and supplied evidence explaining the charge. If leave is granted, Ocean Line requests that the conditional response below be deemed its response to the amendment and that the accompanying Supplemental Declaration of Wilson Jiang be considered.

ARGUMENT

I The proposed amendment introduces materially different issues after Ocean Line answered

CE originally pleaded only 46 U.S.C. § 41102(c), which it must prove under the requirements stated in 46 C.F.R. § 545.4. The proposed 46 U.S.C. § 41104(a)(2)(A) claim requires a different inquiry: whether Ocean Line acted as a common carrier in this particular transaction; whether Ocean Line provided the challenged liner service; what tariff, service contract, or exemption governed; whether the \$4,875 invoice or any component was a rate, an accessorial charge, a pass-through cost, or Ocean Line's own service charge; and whether a challenged pass-through amount was marked up. Those matters were not framed by the original statutory theory.

The assertion that the amendment adds "no new fact" does not eliminate the prejudice. CE's new theory seeks to convert the absence of a document selected by CE into affirmative proof of a violation, after Ocean Line answered the claim that CE actually pleaded. CE had Invoice INV-12431 and Ocean Line's tariff pages before filing its verified complaint and offers no reason it could not have pleaded this theory earlier.

II CE improperly shifts its burden of proof to Ocean Line

The proposed paragraph repeatedly asserts that Ocean Line "has not identified" or "has not shown" a tariff provision or qualifying negotiated rate arrangement. Under 5 U.S.C. § 556(d), however, the proponent of an order bears the burden of proof. CE must establish the elements of its newly proposed claim. It must first prove, among other things, that Ocean Line acted as the regulated common carrier for this transaction and that the particular charge challenged was subject to the tariff-adherence prohibition.

Ocean Line did not issue the HMM sea waybill. HMM was the vessel-operating carrier, and Ocean Link Forwarding, Inc. held the applicable HMM service contract and appeared on the carrier's sea waybill. Ocean Line communicated with and invoiced CE while arranging the requested change of destination. Being CE's

customer-facing contracting and invoicing party does not, without more, establish that Ocean Line assumed common-carrier responsibility or issued an NVOCC bill of lading for this shipment.

III CE has not established the factual premise of its part 532 argument

CE invokes 46 C.F.R. § 532.5(d)(2)(iv), which concerns a pass-through charge whose specific amount is not included in an NRA or rules tariff. That provision does not make every amount on an NVOCC invoice a pass-through charge. Nor does it prohibit compensation for the NVOCC's own COD, handling, documentation, or amendment services. Before the cited provision could apply, CE must identify a particular invoice item, prove it was represented and assessed as a pass-through charge, establish the governing arrangement, and prove that the amount exceeded the charge incurred.

Invoice INV-12431 was itemized rather than a single unexplained \$4,875 charge. It listed ocean freight, COD, COD handling, shutout, renomination, change of port mark, and bill revision. The transaction records further show that Ocean Line paid HMM \$5,920 for DALA20444700 and that HMM's later diversion calculation totaled \$13,201. HMM credited the \$5,920 already paid and stated a balance of \$7,281. CE authorized the continued diversion and paid that balance under reservation. Ocean Line collected \$12,156 on the two invoices—\$1,045 less than HMM's total calculation. These facts refute CE's premise that Ocean Line simply retained an unsupported \$4,875 or obtained an aggregate windfall.

IV The HMM calculation is competent evidence even though the submitted copy does not display an email header

The substantive HMM breakdown identifies the exact bill of lading, routing, charge categories, prior payment, and remaining balance. Wilson Jiang handled the transaction and can identify the calculation as the breakdown received from HMM and maintained in Ocean Line's business records. The absence of a visible email header on the submitted copy does not establish that the calculation is unauthentic or that the underlying charges were not incurred. If the Presiding Judge requires the transmitting email in native or header-bearing form, Ocean Line will make reasonable efforts to obtain and submit it. That potential supplementation is not a basis to presume a statutory violation.

V Conditional response to the proposed amendment

1. Ocean Line denies that it acted as the common carrier providing liner service for the challenged transaction. HMM issued the sea waybill, and Ocean Link Forwarding, Inc. held the applicable HMM service contract. Ocean Line arranged services and invoiced CE but did not issue an Ocean Line bill of lading.
2. Ocean Line admits that it holds FMC Tariff No. 001 but denies that possession of a tariff establishes its capacity in every transaction or proves that every charge on INV-12431 was an Ocean Line liner-service rate.
3. Ocean Line admits issuing and receiving payment on INV-12431. It denies that the invoice was unsupported, unapplied, unperformed, or contrary to 46 U.S.C. § 41104(a)(2)(A).
4. Ocean Line denies that CE has established the existence or amount of any pass-through markup governed by 46 C.F.R. § 532.5(d)(2)(iv). INV-12431 included both transportation-related items and Ocean Line's own COD, handling, and documentation services. Ocean Line does not admit that every invoice component was a pass-through charge.
5. Ocean Line denies that CE is entitled to a \$4,875 refund, interest, filing fees, or other relief. The records show that the funds were applied to the transaction, the requested diversion occurred, and the total HMM calculation exceeded the amount Ocean Line collected from CE.
6. Ocean Line incorporates its previously filed Answer, defenses, and Declaration of Wilson Jiang. Except as expressly admitted, every allegation in the proposed amendment is denied.

CONCLUSION

Ocean Line respectfully requests that the Presiding Judge deny leave. Alternatively, Ocean Line requests that the conditional response above be deemed its answer to the proposed amendment, that the Supplemental Declaration of Wilson Jiang be received, and that CE be required to prove each element of the new statutory theory without shifting its burden to Ocean Line.

Dated: September 21, 2026

Respectfully submitted,

/s/ Shun C. Chen

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Counsel for Respondent Ocean Line Logistics, Inc.

SUPPLEMENTAL DECLARATION OF WILSON JIANG

I, Wilson Jiang, declare as follows:

1. I am an authorized representative of Ocean Line Logistics, Inc. I handled or supervised the transaction involving HMM Sea Waybill DALA20444700 and have personal knowledge of the matters stated below. I also reviewed records maintained by Ocean Line in the ordinary course of business.
2. CE requested that the destination of the two containers be changed from Singapore to Jebel Ali. Ocean Line worked with Ocean Link Forwarding, Inc., which held the applicable HMM service contract, and with HMM to arrange the requested change and later alternative routing.
3. Ocean Line did not issue the HMM sea waybill. HMM issued that document, and Ocean Link Forwarding, Inc. appeared in the shipper field. Ocean Line communicated with CE and issued CE-facing invoices for the arranged services.
4. Invoice INV-12431 itemized \$3,600 in ocean freight, \$400 for COD, \$100 for COD handling, \$400 for shutout, \$150 for renomination, \$150 for change of port mark, and \$75 for bill revision. The invoice was not presented as a single unidentified carrier pass-through charge. It included Ocean Line's services in arranging and processing the requested COD and documentation changes.
5. On April 13, 2026, Ocean Line paid HMM \$5,920 for DALA20444700 and the Jebel Ali COD. Ocean Line's payment report identifies HMM, the bill of lading, the Jebel Ali reference, the payment date, and the amount.
6. The HMM charge breakdown previously submitted is a true and correct copy of the substantive calculation Ocean Line received from HMM for this shipment. I recognize it from the bill of lading, routing, charge categories, prior-payment entry, remaining balance, and my handling of the transaction. The submitted copy contains the calculation itself but does not display the transmitting email header. The absence of the header does not change the calculation.
7. HMM's breakdown listed \$12,141 in freight, transshipment, and storage charges and \$1,060 in COD-related adjustments, for a total of \$13,201. It credited the \$5,920 already paid and stated that \$7,281 remained due.
8. Ocean Line issued Invoice INV-12746 for the \$7,281 balance. CE authorized proceeding with the Khor Fakkan diversion and paid that invoice while reserving its legal position. The diversion occurred.
9. Ocean Line collected \$4,875 plus \$7,281 from CE, totaling \$12,156. HMM's calculation totaled \$13,201. Thus, the total amount collected by Ocean Line was \$1,045 less than the total shown in HMM's calculation.
10. If the Presiding Judge requires the transmitting email showing its header, I will make reasonable efforts to obtain it from Ocean Line's or the co-loader's records and provide it through counsel.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on September 22, 2026, at California _____.



Wilson Jiang

CERTIFICATE OF SERVICE

I certify that on September 22, 2026, I filed the foregoing Respondent Ocean Line Logistics, Inc. Limited Opposition and Conditional Response to Request for Leave to Add Alternative Legal Basis and Supplemental Declaration of Wilson Jiang by electronic mail with the Office of the Secretary at secretary@fmc.gov, with a courtesy copy to judges@fmc.gov, and served a copy on Complainant at its email address of record.

/s/ Shun C. Chen

SHUN C. CHEN